

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 2049

By: Frix of the Senate

and

Gise of the House

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9 An Act relating to transportation; requiring the
10 Department of Transportation to submit certain
11 notification to the Transportation Commission;
12 requiring Department to receive certain approval
13 before taking certain action; providing for
14 codification; and providing an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 1105 of Title 69, unless there
18 is created a duplication in numbering, reads as follows:

19 The Department of Transportation shall, prior to making a claim
20 against a surety company for financial loss due to the
21 nonperformance of a contractor engaged in contract with the
22 Department, notify the Transportation Commission of its intent to
23 make such claim. The Transportation Commission shall review the
24 information submitted by the Department and approve or disapprove

1 the making of such claim. The Department shall only proceed with
2 making such claim if the Transportation Commission approves of such.

3 SECTION 2. This act shall become effective November 1, 2026.
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5 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
6 OVERSIGHT, dated 04/14/2026 - DO PASS.
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